

Shyamdutt v. State of U.P. & Ors.

High Court of Judicature at Allahabad · Division Bench · 13 June 2014 · Writ - C No. 32451 of 2014 · **Writ disposed; apply under clause 6.14; decide within two weeks**

HEADNOTE

After disconnection for unpaid dues, a consumer seeking instalment payment must apply under clause 6.14 of the Electricity Supply Code, 2005, which permits the licensee to extend that facility to consumers in financial distress. The High Court did not grant instalments on the writ and directed the competent authority to consider and decide any such application within two weeks.

FACTUAL SUMMARY

The petitioner's electricity connection was disconnected on account of non-payment of dues. Aggrieved, he filed a writ petition in the Allahabad High Court praying that he be allowed to pay the outstanding amount in instalments. The respondents were the State of Uttar Pradesh and two others. The Division Bench heard the petition on 13 June 2014.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

instalment facility for financial distress

HOLDING

Clause 6.14 of the Electricity Supply Code, 2005 provides that the licensee may extend an instalment facility to consumers in financial distress. The writ seeking instalment payment after disconnection for arrears was disposed of by directing the petitioner to apply to the competent authority, which shall consider and decide the application within two weeks. ¶ 1-2

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALMENTS SHOULD BE GRANTED ON THE PETITIONER'S FACTS

Left to the competent authority under clause 6.14 ¶ 2